

Indian Polity — Part 5

Part 5 of 7

Parliament — Composition, Sessions, Rajya Sabha, Lok Sabha & Legislative Powers

Art 79-122

Rajya Sabha 245

Lok Sabha 543

SSC CGL • CHSL • CPO • MTS/GD • Railway NTPC • State Police/Defence

Money Bill

DEPTH CALIBRATION — SSC CGL

Facts below are tagged **CORE** (high-probability, direct factual recall) or **BONUS** (useful context / more likely on Tier-2). A dedicated **2026 UPDATE** section is added near the end covering two major, live developments directly affecting Parliament's composition.

Why This Chapter Matters

EXAM WEIGHT

Parliament composition, Rajya Sabha/Lok Sabha numbers, Money Bill procedure, and quorum are extremely high-frequency — nearly every shift carries at least one direct number-based question ("what is the total strength," "how many days for Rajya Sabha to return a Money Bill"). These are precise, memorizable facts, so small exact-number errors are the main way marks are lost here.

1. Composition of Parliament (Articles 79–81)

Article	Covers
79	Establishes Parliament — consisting of the President, Rajya Sabha (Council of States), and Lok Sabha (House of the People)
80	Composition of the Rajya Sabha
81	Composition of the Lok Sabha

TRAP WORDING

The **President is a constituent part of Parliament** under Article 79, but is **NOT a member of either House**. The President's signature is required to turn a bill into law, which is why the office is considered part of Parliament despite not sitting in either chamber.

2. Sessions, Summoning & Prorogation (Article 85)

Article 85 empowers the **President** to summon, prorogue, or dissolve the Lok Sabha — but only on the advice of the Prime Minister and the Council of Ministers, never at personal discretion.

Fact	Detail
Number of sessions per year	3 — Budget, Monsoon, Winter
Maximum gap between two sessions	Cannot exceed 6 months
Quorum for either House	1/10th of the total membership
Tie-breaking	The presiding officer (Speaker in Lok Sabha, Chairman in Rajya Sabha) exercises a casting vote only in case of a tie

3. Duration, Qualifications & Disqualifications

Article	Covers
83	Duration of Houses of Parliament — Rajya Sabha does not dissolve (permanent); Lok Sabha's term is 5 years unless dissolved earlier, extendable by law during a Proclamation of Emergency by one year at a time
84	Qualifications for membership: must be a citizen of India; minimum age 30 years for Rajya Sabha, 25 years for Lok Sabha ; must take an oath/affirmation before the Election Commission's authorised person; must meet any other qualification Parliament prescribes by law
102	Disqualifications : holding an office of profit under the Union/State (unless Parliament exempts it by law); being of unsound mind (declared by a competent court); being an undischarged insolvent; not being an Indian citizen or having acquired foreign citizenship/allegiance; being disqualified under any law made by Parliament; or being disqualified under the Tenth Schedule (anti-defection, see Part 3)
103	If a dispute arises on whether a sitting member is disqualified under Article 102, the question is referred to the President , who must obtain and act according to the Election Commission's opinion — the President's decision is final

TRAP WORDING

Article 84's minimum ages (30 for RS, 25 for LS) are a frequently tested exact-number pair — don't swap them. Also, disqualification disputes under Article 102 go to the **President + Election Commission's opinion**, not to the Supreme Court directly or to the Speaker (that's the separate Tenth Schedule/anti-defection procedure, decided by the Speaker/Chairman — see Part 3).

4. Rajya Sabha — Council of States (Article 80)

Fact	Detail
Nature	Permanent body — never dissolves entirely
Total strength	245
Composition	233 elected (representing States and Union Territories) + 12 nominated by the President (persons with special knowledge in literature, science, art, social service)
Term	6 years per member
Rotation	1/3rd of members retire every 2 years — this is exactly why the House can never be fully dissolved
Election method	Proportional representation by means of the single transferable vote, through State/UT Legislative Assemblies
Ex-officio Chairman	The Vice-President of India — not a member of the House but presides over it
Day-to-day presiding	Usually the Deputy Chairman , elected from among Rajya Sabha members

MEMORY TRICK

"**245 = 233 + 12**" — and 1/3rd of 233-ish leave every 2 years, keeping the body permanently alive.

5. Lok Sabha — House of the People (Article 81)

Fact	Detail
Term	5 years , unless dissolved earlier
Dissolution	By the President , only on the advice of the PM and Council of Ministers — not a discretionary power
Presiding officer	Speaker (not the Vice-President, unlike Rajya Sabha) — day-to-day chair is the Deputy Speaker in the Speaker's absence
Constitutionally prescribed maximum strength	552 (530 from States + 20 from Union Territories + originally 2 nominated Anglo-Indian members)
Anglo-Indian seats	Abolished by the 104th Amendment, 2019/2020 (presidential assent 25 January 2020) — this also extended SC/ST reservation in the Lok Sabha and State Assemblies to 2030
Current elected strength	543 members

TRAP WORDING

If a question asks for the maximum strength "as prescribed by the Constitution" (i.e., the original constitutional text), the answer is **552** — don't mark 550 or 543 even though those reflect the current post-104th-Amendment reality. Read the question's exact phrasing carefully; "originally prescribed" and "currently" are different answers here.

6. Money Bills (Article 110)

Fact	Detail
Where introduced	Only in the Lok Sabha — never in the Rajya Sabha
Certification	The Speaker of the Lok Sabha certifies whether a bill is a Money Bill — this certification is final
Rajya Sabha's role	Must return it within 14 days , with or without recommendations — Lok Sabha may accept or reject the recommendations entirely
Can Rajya Sabha block it?	No — it cannot reject or indefinitely delay a Money Bill
Veto	No veto power exists over a Money Bill for either the Rajya Sabha or the President

TRAP WORDING

"Both Houses have equal power to introduce a Money Bill" and "Neither House can introduce a Money Bill" are both false distractors seen in real papers — only the Lok Sabha can introduce one, full stop.

7. Special vs. Simple Majority

Type	Threshold
Simple majority	More than 50% of members present and voting (i.e., "1/2")
Special majority	2/3rd of members present and voting — required for most Constitutional Amendments and certain resolutions (e.g., creating new All India Services)

8. Parliament's Power to Legislate on State List Subjects

Normally, only State Legislatures can make laws on State List subjects. But Parliament can step in in these specific situations:

- National interest — Rajya Sabha passes a resolution by a **2/3rd special majority** (Article 249)
- During a **National Emergency** (Article 352)
- When **President's Rule** is in force in a State (Article 356)
- When two or more States jointly request it (Article 252)
- To implement an **international agreement/treaty** (Article 253)

MEMORY TRICK

"National, Emergency, President, Request, Treaty" — five doors through which the Centre can enter State territory legislatively.

9. Article 312 — All India Services

Parliament can create new All India Services (like IAS, IPS, IFS) common to both the Union and the States, **if the Rajya Sabha passes a resolution by a 2/3rd special majority** of members present and voting — this power specifically belongs to the Rajya Sabha, not the Lok Sabha, since it protects federal/State interests.

TRAP WORDING

This resolution power belongs to the **Rajya Sabha**, never the Lok Sabha — a frequently tested house-swap trap, especially since Money Bill power runs the opposite way (Lok Sabha only).

10. Article 368 — Amendment Power & Judicial Review

The power to amend the distribution of legislative powers between Centre and States rests with **Parliament**, exercised under **Article 368**. The Supreme Court retains the power to review any constitutional amendment to ensure it does not violate the **Basic Structure** (Kesavananda Bharati, 1973 — see Part 4).

NJAC CASE — A RECENT APPLICATION OF BASIC STRUCTURE

The **99th Constitutional Amendment** created the National Judicial Appointments Commission (NJAC) to replace the judges' Collegium system for appointing Supreme Court/High Court judges. In **Supreme Court Advocates-on-Record Association v. Union of India, 2015**, the Supreme Court struck down the 99th Amendment and the NJAC Act as unconstitutional, holding that it violated the **independence of the judiciary** — a Basic Structure feature — since it let the Executive/Legislature interfere in judicial appointments. The Collegium system was restored.

MEMORY TRICK

"NJAC tried, Basic Structure denied."

11. Article 105 — Parliamentary Privileges

Grants members freedom of speech in Parliament (immune from court proceedings for anything said or any vote cast inside the House or its committees) and other privileges the House itself may define. This immunity extends to non-members who are part of a Parliamentary committee (e.g., invited experts).

LANDMARK CASE — P.V. NARASIMHA RAO V. STATE, 1998

In the "cash-for-vote" (JMM bribery) case, the Supreme Court held that MPs who accepted bribes to vote a particular way in a no-confidence motion were **immune from prosecution** for that vote/speech under Article 105(2) — though this immunity for corruption in exchange for a vote has since been revisited by a larger bench, which held that such immunity does NOT extend to bribery itself (only to the vote/speech act).

12. Legislative Procedure for Ordinary Bills (Articles 107–111)

Article	Covers
107	An ordinary Bill may originate in either House ; must be passed by both Houses (with or without amendments agreed by both) to become law; a pending Bill does not lapse merely because a House is prorogued
108	Joint Sitting to resolve deadlock (see the dedicated Gap section below)
109	Special procedure for Money Bills — cannot be introduced in the Rajya Sabha
110	Defines what a "Money Bill" is (see section 6 above)
111	Presidential assent — after both Houses pass a Bill, the President may (a) give assent, (b) withhold assent, or (c) return it (if not a Money Bill) for reconsideration with a message. If Parliament passes it again with or without amendments, the President must give assent — no further withholding is allowed at that stage

TRAP WORDING

The President's "return for reconsideration" power under Article 111 does **not** apply to **Money Bills** — those can only be assented to or withheld, never sent back. Also, once Parliament re-passes a returned Bill, presidential assent becomes **mandatory**, removing all further discretion.

13. Procedure in Financial Matters (Articles 112–117)

Article	Covers
112	President causes the Annual Financial Statement (the Union Budget) to be laid before both Houses each year
113	Expenditure "charged" on the Consolidated Fund of India (e.g., President's salary, judges' salaries, CAG's salary, debt charges) is not voted on by Parliament — only discussed; all other expenditure requires a vote in the form of Demands for Grants
114	Governs Appropriation Bills — after Demands for Grants are voted, this Bill authorises actual withdrawal from the Consolidated Fund
115	Supplementary, additional, or excess grants — procedure when the original budget estimate proves insufficient
116	Votes on account, votes of credit, and exceptional grants — lets government access funds before the full Budget is passed
117	Special provisions for Financial Bills — can only be introduced in the Lok Sabha, and only on the President's prior recommendation; otherwise follows the same procedure as an ordinary Bill (unlike a Money Bill, the President CAN return a Financial Bill for reconsideration)

TRAP WORDING — MONEY BILL VS. FINANCIAL BILL

Both are Lok-Sabha-only and need the President's prior recommendation to introduce — but a **Money Bill** (Article 110) can never be returned by the President for reconsideration, while a **Financial Bill** (Article 117) can be. Don't treat these two categories as identical; the distinction is a frequently tested trap.

14. Rules of Procedure & Restrictions on Discussion (Articles 118, 121, 122)

Article	Covers
118	Each House can make its own rules for regulating its procedure and conduct of business, subject to the Constitution
121	No discussion in Parliament on the conduct of a Supreme Court/High Court judge in discharge of their duties, except during a motion for the judge's removal (impeachment)
122	Courts cannot inquire into the proceedings of Parliament on the ground of any alleged procedural irregularity — reinforces separation of powers between judiciary and legislature

Gap Within This Part — Joint Sitting (Article 108)

WHAT THE VIDEO DIDN'T COVER

The video explains Rajya Sabha/Lok Sabha mechanics in detail but doesn't cover the deadlock-resolution mechanism between the two Houses — a frequently tested, high-value addition:

Fact	Detail
Provision	Article 108 — allows the President to summon a Joint Sitting of both Houses to resolve a deadlock over an ordinary (non-Money) Bill
Triggers	A Bill is rejected by one House, OR the Houses disagree on amendments, OR more than 6 months pass without the other House acting
Who presides	The Speaker of the Lok Sabha (not the Rajya Sabha Chairman/Vice-President)
Excluded	Money Bills and Constitutional Amendment Bills can never go to a Joint Sitting
Origin	Idea borrowed from the Government of India Act, 1935
Used so far	Only 3 times in India's history: Dowry Prohibition Bill (1961), Banking Service Commission (Repeal) Bill (1978), Prevention of Terrorism Act/POTA (2002)

TRAP WORDING

Because the Lok Sabha (543) is always more than double the Rajya Sabha (245), a Joint Sitting's combined vote virtually guarantees the Lok Sabha's version prevails — this is a common "why does this mechanism favour the Lok Sabha" reasoning question.

Master Reference Table

Fact	Answer
Articles establishing Parliament / RS / LS composition	79 / 80 / 81
Minimum age to be a Rajya Sabha / Lok Sabha member	30 years / 25 years (Article 84)
Who decides disputes on a sitting member's disqualification (Art 102)	The President, acting on the Election Commission's opinion (Article 103)
Article granting Parliamentary privileges	Article 105
Case on MPs' immunity for bribery-linked votes	P.V. Narasimha Rao v. State, 1998
Article for ordinary Bill legislative procedure	Articles 107–111
Article for Presidential assent to Bills	Article 111
Article for the Annual Financial Statement (Budget)	Article 112
Expenditure not put to vote in Parliament	Charged expenditure on the Consolidated Fund (Article 113)
Article authorising withdrawal from the Consolidated Fund	Article 114 (Appropriation Bill)
Article for Financial Bills (LS-only, President can return it)	Article 117
Article barring courts from scrutinising Parliament's proceedings	Article 122
Rajya Sabha total strength	245 (233 elected + 12 nominated)
Rajya Sabha member term / rotation	6 years; 1/3rd retire every 2 years
Ex-officio Chairman of Rajya Sabha	Vice-President of India
Lok Sabha constitutionally prescribed max strength	552 (530 + 20 + originally 2 Anglo-Indian)
Lok Sabha current elected strength	543
Amendment that removed Anglo-Indian seats	104th Amendment, 2019/2020
Lok Sabha term	5 years
Quorum for either House	1/10th of total membership
Where Money Bills can be introduced	Only the Lok Sabha
Who certifies a Money Bill	The Speaker of the Lok Sabha
Rajya Sabha's time limit to return a Money Bill	14 days
Article for creating new All India Services	Article 312 (Rajya Sabha, 2/3rd special majority)
Article for Constitutional Amendments	Article 368
Case striking down the NJAC (99th Amendment)	Supreme Court Advocates-on-Record Association v. Union of India, 2015
Article for Joint Sitting	Article 108 (Lok Sabha Speaker presides; used 3 times)
Minimum age to be a Rajya Sabha / Lok Sabha member	30 years / 25 years (Article 84)
Who decides a sitting member's disqualification dispute	President, acting on the Election Commission's opinion (Article 103)
Article granting Parliamentary privileges	Article 105
Case on MPs' immunity for bribery-linked votes	P.V. Narasimha Rao v. State, 1998
Article on Presidential assent to ordinary Bills	Article 111 (President must assent if Parliament re-passes a returned Bill)
Article for the Annual Financial Statement (Union Budget)	Article 112
Expenditure not put to a vote in Parliament	Expenditure charged on the Consolidated Fund of India (Article 113)
Article authorising withdrawal from the Consolidated Fund	Article 114 (Appropriation Bill)
Difference between Money Bill and Financial Bill	Money Bill (Art 110) can never be returned by the President; Financial Bill (Art 117) can be
Article barring courts from questioning Parliament's proceedings	Article 122

30-Second Revision Table

Topic	Key Fact
Parliament composed of	President + Rajya Sabha + Lok Sabha
RS strength / term	245 (233+12) / 6 years, 1/3rd every 2 yrs
LS strength / term	552 max (543 current) / 5 years
RS ex-officio chair	Vice-President
LS presiding officer	Speaker
Money Bill house	Lok Sabha only, RS has 14 days, no veto
All India Services power	Rajya Sabha, 2/3rd majority (Art 312)
Amendment power	Article 368, subject to Basic Structure review
Joint Sitting	Article 108, LS Speaker presides, used 3 times
Quorum	1/10th of total members

PYQ-Style Q&A (From This Video's Content)

Q1. What is the composition of Parliament under Article 79?

A. The President, the Rajya Sabha, and the Lok Sabha.

Q2. Is the President a member of either House of Parliament?

A. No — the President is a constituent part of Parliament but not a member of either House.

Q3. Who can summon, prorogue, or dissolve the Lok Sabha, and on whose advice?

A. The President, on the advice of the Prime Minister and Council of Ministers (Article 85).

Q4. What is the maximum permissible gap between two sessions of Parliament?

A. 6 months.

Q5. What is the quorum required for a sitting of either House of Parliament?

A. 1/10th of the total number of members.

Q6. Is the Rajya Sabha ever fully dissolved?

A. No — it is a permanent body; 1/3rd of its members retire every 2 years.

Q7. What is the total strength of the Rajya Sabha, and how is it composed?

A. 245 — 233 elected (States/UTs) + 12 nominated by the President.

Q8. Who is the ex-officio Chairman of the Rajya Sabha?

A. The Vice-President of India.

Q9. What is the maximum number of Lok Sabha members prescribed by the Constitution?

A. 552.

Q10. What is the current elected strength of the Lok Sabha?

A. 543.

Q11. Which Amendment abolished the Anglo-Indian nominated seats?

A. 104th Amendment, 2019/2020.

Q12. In which House can a Money Bill be introduced?

A. Only the Lok Sabha.

Q13. Who certifies whether a bill is a Money Bill?

A. The Speaker of the Lok Sabha.

Q14. Within how many days must the Rajya Sabha return a Money Bill?

A. 14 days.

Q15. Can the Rajya Sabha reject a Money Bill?

A. No, and neither can the President exercise a veto over it.

Q16. Which body has the power to create a new All India Service common to Union and States, and by what majority?

A. The Rajya Sabha, by a 2/3rd special majority resolution (Article 312).

Q17. Under which conditions can Parliament legislate on a State List subject?

A. National interest (RS 2/3rd resolution, Art 249), National Emergency, President's Rule, joint request by States, or to implement an international agreement.

Q18. Which Article gives Parliament the power to amend the Constitution?

A. Article 368, subject to Supreme Court review for Basic Structure violations.

Q19. Which case struck down the NJAC and the 99th Amendment?

A. Supreme Court Advocates-on-Record Association v. Union of India, 2015.

Deep-Dive Q&A — Newly Added Articles

Q23. What is the minimum age to be a member of the Rajya Sabha? Of the Lok Sabha?

A. 30 years for Rajya Sabha; 25 years for Lok Sabha (Article 84).

Q24. Who decides a dispute about whether a sitting MP is disqualified under Article 102?

A. The President, acting on the Election Commission's opinion (Article 103).

Q25. What immunity does Article 105 give MPs?

A. Freedom of speech and immunity from court proceedings for anything said or voted inside Parliament or its committees.

Q26. What are the President's three options under Article 111 for an ordinary Bill?

A. Give assent, withhold assent, or return it (if not a Money Bill) for reconsideration.

Q27. What kind of expenditure is "charged" on the Consolidated Fund of India and not voted on by Parliament?

A. Expenditure like the President's salary, judges' salaries, and the CAG's salary (Article 113).

Q28. Which Bill authorises actual withdrawal of money from the Consolidated Fund after Demands for Grants are voted?

A. The Appropriation Bill (Article 114).

Q29. Can the President return a Financial Bill for reconsideration, unlike a Money Bill?

A. Yes — a Financial Bill (Article 117) can be returned; a Money Bill (Article 110) cannot.

Q30. Can courts inquire into Parliament's proceedings for procedural irregularities?

A. No (Article 122).

2026 Current-Affairs Hooks 2026 UPDATE

WOMEN'S RESERVATION ACT (106TH AMENDMENT, 2023) — NOW IN FORCE, NOT YET APPLIED

Passed by Parliament in September 2023 (also called the **Nari Shakti Vandan Adhiniyam**), this Amendment reserves **1/3rd (33%) of seats** for women in the Lok Sabha, all State Legislative Assemblies, and the Delhi Assembly — including within existing SC/ST quotas. The Central Government formally notified it into force on **16 April 2026**. However, actual implementation is tied to a fresh delimitation exercise based on a future census, so the reservation does **not yet apply** to any sitting House — it's expected to first apply only from the elections following that delimitation.

THE APRIL 2026 DELIMITATION SHOWDOWN

In a special Parliament session (16–18 April 2026), the government introduced three linked Bills: the **Constitution (131st Amendment) Bill, 2026** (to expand Lok Sabha from 543 towards ~850 seats and fast-track women's reservation using the 2011 Census instead of waiting for a future one), the **Delimitation Bill, 2026**, and the **Union Territories Laws (Amendment) Bill, 2026**. The 131st Amendment Bill needed a special majority and was **defeated in the Lok Sabha on 17 April 2026** (278 "ayes" out of 489 votes cast — short of the required threshold). Southern states (Tamil Nadu, Kerala, Karnataka, Telangana, and others) had strongly opposed the expansion, fearing that population-based delimitation would reduce their relative representation compared to larger, faster-growing northern states.

WHY THIS MATTERS FOR THIS CHAPTER

This connects directly to three static facts you've already learned here: the **Lok Sabha's 552-seat constitutional ceiling** (which this Bill wanted to raise), the **84th Amendment's freeze** on inter-state seat redistribution (due to lapse after the first census post-2026 — which is exactly why this came up now), and the **special majority** requirement for Constitutional Amendments (Article 368 — which is exactly why the Bill failed). Expect this as a "which Bill was defeated in 2026" or "why is 2026 significant for delimitation" current-affairs question, rather than deep procedural detail.

Extra Practice (Adjacent — Not Directly Asked in This Video)

Q20. Which Article provides for a Joint Sitting of Parliament, and who presides over it?

A. Article 108; the Speaker of the Lok Sabha.

Q21. How many times has a Joint Sitting been held in India, and for which Bills?

A. 3 times — Dowry Prohibition Bill (1961), Banking Service Commission Repeal Bill (1978), and POTA (2002).

Q22. Can a Money Bill or Constitutional Amendment Bill be referred to a Joint Sitting?

A. No — both are excluded from the Joint Sitting mechanism.

Cross-check: Parliament composition, Rajya Sabha/Lok Sabha mechanics, Money Bill procedure, and the NJAC case are transcribed and verified from the source lecture. The Joint Sitting (Article 108) section and the exact 104th Amendment dates were independently researched and verified against standard reference sources, since the video did not cover them. This is Part 5 of a 7-part Indian Polity series.